

COVER LETTER TO THE CLERK OF COURT

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February 15, 2026

Office of the Clerk of Court
United States District Court
Southern District of Texas, Galveston Division
601 Rosenberg, Room 411
Galveston, Texas 77550

Re: Thompson v. Matagorda County, et al.
Civil Action No.: 3:25-CV-00253

Filing: Plaintiff's Response in Opposition to Defendants' Motion to Dismiss

Dear Clerk of Court:

I am the Plaintiff in the above-referenced matter and am appearing pro se. I have not yet been granted electronic filing (CM/ECF) privileges in this case. Accordingly, I am submitting the enclosed documents by United States Certified Mail for filing with the Court.

Enclosed for filing please find:

1. Plaintiff's Response in Opposition to Matagorda County Defendants' Motion to Dismiss
2. Certificate of Service
3. Order for the Judge to sign

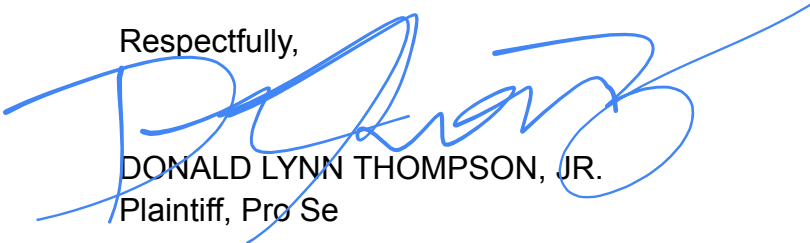
I respectfully request that the Clerk file-stamp the enclosed documents and enter them on the docket for Civil Action No. 3:25-CV-00253.

I have simultaneously served a true and correct copy of all enclosed documents upon counsel for Defendants via United States Certified Mail, Return Receipt Requested, at their address of record, and via electronic mail.

If there are any deficiencies in this filing or if additional action is required on my part, I respectfully request that the Clerk notify me at the address, or email address listed above so that I may promptly address any issues.

Thank you for your assistance in this matter.

Respectfully,

A handwritten signature in blue ink, appearing to read 'D. Thompson, Jr.', is written over the typed name and title.

DONALD LYNN THOMPSON, JR.
Plaintiff, Pro Se

Enclosures:

1. Plaintiff's Response in Opposition to Motion to Dismiss (Original)
2. Certificate of Service
3. Order for the judge

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF TEXAS
GALVESTON DIVISION

Donald Lynn Thompson Jr.,
Plaintiff,

v.

Matagorda County, et al.,
Defendants.

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CIVIL ACTION NO. 3:25-cv-00253

PLAINTIFF'S RESPONSE IN OPPOSITION TO
MATAGORDA COUNTY DEFENDANTS' MOTION TO DISMISS

Plaintiff DONALD LYNN THOMPSON, JR., appearing pro se and sui juris, respectfully submits this Response in Opposition to the Matagorda County Defendants' Motion to Dismiss filed pursuant to Federal Rule of Civil Procedure 12(b)(6) and states as follows:

I. INTRODUCTION

Defendants' Motion to Dismiss rests on a fundamental and recurring misstatement of Texas law: that a custodial arrest for expired vehicle registration is categorically lawful and that probable cause for the stop automatically authorized every subsequent action taken against Plaintiff. This characterization is legally incorrect, factually incomplete,

and strategically designed to collapse a multi-count civil rights complaint into a single probable-cause inquiry.

This case is not merely about whether a deputy had grounds to initiate a traffic stop. This case is about what happened after that stop — the custodial arrest for a non-jailable administrative infraction that Texas law provides a specific remedial process to address; the eighteen-hour detention without warrant, charge, or judicial review; the sham magistration that imposed punishment without a plea or finding of guilt; the coordinated suppression of exculpatory video evidence; the obstruction of public records access; the procedurally defective tow hearing designed to ratify prior misconduct; and the ongoing maintenance of a fabricated criminal record. These are the constitutional injuries at the heart of Plaintiff's Complaint, and Defendants' Motion addresses virtually none of them.

The disproportionality of the County's response cannot be overstated. The Texas Legislature determined that the maximum financial consequence for operating a vehicle with expired registration — after the charge is dismissed upon remedial compliance — is a \$20 reimbursement fee. Tex. Transp. Code § 502.407(b)(2). In response to this \$20 administrative matter, Defendants handcuffed Plaintiff, transported him to jail, detained him for eighteen hours without a warrant or judicial review, imposed a "time served" criminal disposition without a plea or adjudication, seized his vehicle, conducted a procedurally defective tow hearing, suppressed exculpatory evidence, obstructed public records access, and created a permanent false criminal record. The chasm between the

Legislature's intended remedy and Defendants' actual conduct is itself powerful evidence of the constitutional violations alleged in this Complaint.

Defendants ask this Court to accept, at the motion-to-dismiss stage, their own contested legal conclusions as established fact, to demand evidentiary proof that is neither required nor appropriate before discovery, and to extend immunity doctrines beyond their recognized boundaries. The Court should decline each of these invitations.

II. LEGAL STANDARD APPLICABLE TO PRO SE PLAINTIFFS

A pro se plaintiff's complaint must be liberally construed, and "however inartfully pleaded, must be held to less stringent standards than formal pleadings drafted by lawyers." *Erickson v. Pardus*, 551 U.S. 89, 94 (2007).

Under Rule 12(b)(6), the Court must accept all well-pleaded factual allegations as true and draw all reasonable inferences in Plaintiff's favor. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009); *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007). The question is not whether Plaintiff will ultimately prevail, but whether the Complaint, liberally construed, states a plausible claim for relief.

Defendants bear the burden of demonstrating that, even accepting every factual allegation as true and drawing every reasonable inference in Plaintiff's favor, no plausible claim for relief exists. They have not met that burden.

III. ARGUMENT AND AUTHORITIES

A. Defendants Misstate the Applicable Law — Texas Transportation Code § 543.003 Is Inapposite; § 502.407 Controls

1. Defendants' Reliance on General Arrest Authority Is Misplaced

The centerpiece of Defendants' Motion is their contention that "a person may legally be arrested for driving with an expired registration." Defs.' Mot. at 3. To support this proposition, Defendants cite a handful of appellate decisions. This argument fails for a critical reason: the correct statutory framework is Texas Transportation Code § 502.407.

2. Texas Transportation Code § 502.407 Provides a Specific Remedial Framework That Defendants Entirely Ignored

The Texas Legislature enacted § 502.407 to address the precise situation at issue in this case — operation of a vehicle with expired registration. The statute provides:

- "A justice of the peace or municipal court judge having jurisdiction of the offense may dismiss a charge of driving with an expired motor vehicle registration if the defendant remedies the defect not later than the 20th working day after the date

of the offense or before the defendant's first court appearance date, whichever is later, and establishes that the fee prescribed by Section 502.045 has been paid."

Tex. Transp. Code § 502.407(b)(1).

The statute further provides that when the charge is dismissed under this provision, the court may assess a reimbursement fee "not to exceed \$20." Tex. Transp. Code § 502.407(b)(2).

This remedial framework is significant for several reasons:

Legislative Intent:

- The Legislature specifically contemplated how expired registration offenses should be resolved and chose a corrective, non-punitive approach. The defendant is given 20 working days — nearly a full calendar month — to remedy the defect. If the defendant complies, the charge is dismissed. The maximum financial consequence is \$20. This is the hallmark of an administrative compliance mechanism, not a criminal offense warranting custodial arrest, jail detention, and criminal disposition.

The Remedial Process Was Denied:

- Plaintiff was never issued a citation. Compl. 22. Plaintiff was never advised of his right to remedy the defect under § 502.407(b). Plaintiff was never given a

court appearance date at which he could present proof of compliance. Instead, Plaintiff was handcuffed, transported to jail, detained for eighteen hours, and subjected to a "time served" disposition that was imposed without a plea, without a finding of guilt, and without any opportunity to invoke the remedial provisions that the Legislature specifically created for this offense. Judge Sanders's imposition of "time served" affirmatively eliminated Plaintiff's statutory right to dismissal under § 502.407(b).

The Statute Controls Over General Arrest Authority:

- When the Legislature enacts a specific remedial provision for a particular offense, that specific provision governs over general arrest authority. *See *Jarecki v. G.D. Searle & Co.**, 367 U.S. 303, 307 (1961); **RadLAX Gateway Hotel, LLC v. Amalgamated Bank**, 566 U.S. 639, 645 (2012). The existence of § 502.407's detailed remedial framework — complete with specific timelines, compliance requirements, and a capped reimbursement fee — demonstrates that the Legislature did not intend for expired registration to be addressed through custodial arrest, jail detention, and criminal disposition. Defendants' reliance on general arrest authority ignores the specific statute that the Legislature enacted for this exact circumstance.

Reasonableness Under the Fourth Amendment:

- Even if some general authority to arrest existed, the Fourth Amendment requires that seizures be reasonable. Where the Legislature has determined that an

offense is properly resolved through a \$20 administrative remedy and dismissal, an officer's decision to instead handcuff the individual, transport him to jail, and detain him for eighteen hours raises serious questions of constitutional reasonableness that cannot be resolved on a motion to dismiss.

3. The Cases Defendants Cite Are Distinguishable

Defendants cite *Jaycox v. Pyle*, *Hodnett v. State*, *Dominguez-Ramil v. State*, and *Blake v. State* for the proposition that expired registration supports a lawful arrest. These cases are distinguishable on multiple grounds:

None of these cases involved a challenge under a statute's remedial framework. The courts in those cases were not presented with the argument that the Legislature's specific remedial provision for expired registration supersedes general arrest authority. A legal principle that has not been tested on a particular theory cannot foreclose that theory.

Several of these cases involved additional offenses or aggravating circumstances — such as failure to carry liability insurance, outstanding warrants, or other concurrent violations — that independently supported custodial arrest. In *Dominguez-Ramil*, the court specifically noted that the officer had probable cause for "expired registration *and* failure to carry liability insurance." In *Jaycox*, the court cited § 502.473, which concerns the display of registration insignia — a distinct offense from operating with

expired registration under § 502.407. Plaintiff's Complaint alleges a sole charge of expired registration with no aggravating factors.

None of these cases addressed the constitutionality of an 18-hour detention following arrest for an administrative compliance matter that the Legislature specifically designated for remedial treatment with a maximum \$20 consequence.

These cases are therefore inapposite and do not support the blanket proposition that Defendants advance.

B. Defendants Improperly Assume Probable Cause Without Demonstrating Its Lawful Basis

Defendants repeatedly assert that "probable cause" existed for Plaintiff's arrest and that therefore all of Plaintiff's claims fail. However, Defendants engage in a critical logical fallacy: they assume the conclusion they are required to prove.

Probable cause for a traffic stop is not the same as probable cause for a custodial arrest. Defendants conflate the two. An officer may have reasonable suspicion or even probable cause to conduct a traffic stop for expired registration. That does not automatically mean the officer had authority to conduct a custodial arrest, particularly where the Legislature has provided a remedial, non-custodial framework for the offense.

Defendants never explain how the specific actions taken were lawful. Defendants state that the arrest was legal but fail to articulate: (a) what specific statutory authority authorized custodial arrest rather than citation and release for this particular offense; (b) why the remedial process under § 502.407 was not followed; (c) what justified eighteen hours of detention without a warrant or judicial review; and (d) what legal authority supported the imposition of "time served" without a plea, formal charge, or finding of guilt. The absence of these explanations is fatal to Defendants' argument.

At the 12(b)(6) stage, it is Plaintiff's factual allegations, not Defendants' legal conclusions, that control. Plaintiff has alleged that the arrest was unlawful, that the detention was without warrant or probable cause, and that the magistration was conducted without jurisdiction or due process. These allegations must be accepted as true. **Iqbal**, 556 U.S. at 678. Defendants' assertion that "the arrest was lawful" is a contested legal conclusion that cannot be resolved on a motion to dismiss.

C. Defendants Conflate Probable Cause with the Totality of Plaintiff's Claims

Perhaps the most significant deficiency in Defendants' Motion is their attempt to reduce this entire case to a single probable-cause determination. Plaintiff's Complaint asserts five counts alleging distinct constitutional violations:

Count I:

- Unlawful arrest and detention (Fourth and Fourteenth Amendments)

Count II:

- Suppression of evidence and denial of due process (Fifth and Fourteenth Amendments; *Brady v. Maryland*)

Count III:

- Malicious prosecution (Fourth and Fourteenth Amendments)

Count IV:

- Civil conspiracy to violate constitutional rights (42 U.S.C. §§ 1985(3), 1986)

Count V:

- Monell liability for unconstitutional policies and practices (42 U.S.C. § 1983)

Even if Defendants were correct that probable cause existed for the initial traffic stop, which Plaintiff disputes as to the custodial arrest, probable cause for a stop does not immunize:

- The eighteen-hour detention without a warrant, formal charge, or judicial review
- The sham magistration by Judge Sanders imposing "time served" without a plea, without advising Plaintiff of his rights, without a finding of guilt, and in direct contravention of the remedial framework established by § 502.407(b)
- The suppression of body camera and dash camera footage that Plaintiff and his spouse specifically requested
- The denial of public records access despite court-recognized indigency
- The procedurally defective tow hearing before Judge Finlay, in which exculpatory evidence was suppressed, the oral discovery motion was denied without

justification, and testimony from a witness lacking firsthand knowledge was admitted

- The ongoing maintenance of a false criminal record created through these unconstitutional proceedings

Defendants' Motion does not meaningfully address the vast majority of these allegations. Their silence is telling. Each of these constitutes an independent constitutional injury that exists regardless of whether the initial traffic stop was supported by probable cause.

D. Defendants Demand Evidentiary Facts Not Required at the Pleading Stage

Throughout their Motion, Defendants repeatedly argue that Plaintiff has failed to present "evidence" of his claims. *See, e.g.*, Defs.' Mot. at 8 ("Plaintiff presents no evidence of any agreement"); Defs.' Mot. at 10 ("Plaintiff does not present evidence of an agreement").

This standard is fundamentally wrong at the Rule 12(b)(6) stage. A motion to dismiss tests the sufficiency of the pleadings, not the sufficiency of the evidence. *Twombly*, 550 U.S. at 555. Plaintiff is not required to present evidence at the pleading stage. He is required to allege facts that, accepted as true, state a plausible claim for relief. *Iqbal*, 556 U.S. at 678.

Defendants' demand for evidence is, in reality, a demand for discovery, the very discovery that Defendants have not yet been required to provide and that Plaintiff has been systematically denied since the underlying events occurred. The irony should not be lost on this Court: Defendants suppressed and obstructed Plaintiff's access to the very evidence (body camera footage, dash camera footage, official records) that would substantiate his claims, and now argue that the absence of that evidence warrants dismissal.

The appropriate remedy is not dismissal, it is discovery. Plaintiff is entitled to the opportunity to obtain through formal discovery the evidence that Defendants have obstructed him from obtaining informally. Dismissing the case before any discovery has occurred would reward the very concealment that Plaintiff's Complaint challenges.

E. Judicial Immunity Does Not Shield the Conduct Alleged Against Judges Sanders and Finlay

Defendants assert that Judges Sanders and Finlay are entitled to absolute judicial immunity. While judicial immunity is a well-established doctrine, it is not without limits, and those limits are directly implicated here.

1. Judicial Immunity Does Not Apply to Actions Taken in the Clear Absence of Jurisdiction

The Supreme Court has held that a judge is subject to liability "when he has acted in the 'clear absence of all jurisdiction.'" *Stump v. Sparkman*, 435 U.S. 349, 356-57 (1978).

Plaintiff alleges that Judge Sanders conducted a magistration and entered a disposition of "time served" without jurisdiction, without a formal charge, without a plea, without a finding of guilt, and without advising Plaintiff of his rights or legal options. Compl. 21. The imposition of criminal punishment for an administrative infraction that was never formally charged, never pled to, and never adjudicated on the merits raises a serious question as to whether Judge Sanders acted within any cognizable jurisdiction.

Judge Sanders's conduct is particularly egregious when viewed against § 502.407(b). The Legislature specifically granted justices of the peace the authority to dismiss expired registration charges upon proof of remedial compliance. Instead of exercising this legislatively authorized power, Judge Sanders imposed a "time served" disposition, a form of criminal punishment, without a formal charge, without a plea, without advising Plaintiff of his rights, and without any opportunity for Plaintiff to invoke the remedial process that the Legislature created. Judge Sanders did not merely err in his judicial function; he acted in direct contravention of the specific statutory framework the Legislature enacted and imposed punishment where the Legislature contemplated dismissal. This raises a plausible inference that Judge Sanders acted in the "clear absence of all jurisdiction" sufficient to overcome judicial immunity at the pleading stage. *Stump*, 435 U.S. at 356-57.

Plaintiff alleges that Judge Finlay denied an oral motion for production of evidence without justification, permitted testimony from a witness lacking firsthand knowledge, sustained objections designed to shield misconduct, and issued a ruling ratifying prior constitutional violations. Compl. ¶¶ 25-27. While individual evidentiary rulings may ordinarily fall within judicial immunity, the pattern of rulings, each of which operated to conceal and ratify prior unconstitutional conduct, raises a plausible inference that Judge Finlay was acting as a participant in the coordinated misconduct alleged in Count IV rather than as a neutral judicial officer.

2. Whether Judicial Immunity Applies Is a Fact-Intensive Inquiry

Whether a judge's actions were "judicial in nature" and whether the judge had jurisdiction are fact-intensive questions that cannot be resolved on a Rule 12(b)(6) motion when, as here, Plaintiff has alleged specific facts suggesting the absence of jurisdiction and the presence of non-judicial conduct.

F. Prosecutorial Immunity Does Not Apply to the Investigative and Administrative Conduct Alleged Against County Attorney Chau

Defendants assert that County Attorney Jennifer Chau is entitled to prosecutorial immunity. However, prosecutorial immunity is limited to conduct "intimately associated with the judicial phase of the criminal process." *Imbler v. Pachtman**, 424 U.S. 409, 430 (1976).

Plaintiff's claims against County Attorney Chau are not based on traditional prosecutorial functions. Rather, Plaintiff alleges that Chau:

- Participated in the tow hearing — an administrative and civil proceeding, not a criminal prosecution — and misrepresented the legality of the arrest. Compl. ¶¶ 23, 26.
- Blocked access to exculpatory evidence by objecting to discovery requests and lines of questioning that would have exposed deputy misconduct. Compl. 26.
- Permitted and relied upon testimony from a towing company representative who lacked any firsthand knowledge of the towing circumstances or vehicle location. Compl. 26.
- Continued to support and legitimize the false arrest after Plaintiff's release. Compl. 56.

These actions are not investigative but administrative in nature, not prosecutorial. When a prosecutor acts as an advocate in an administrative hearing, or witness coordinator rather than as an advocate in criminal court proceedings, absolute prosecutorial immunity does not apply. **Burns v. Reed**, 500 U.S. 478 (1991) (no absolute immunity for giving legal advice to police); **Buckley v. Fitzsimmons**, 509 U.S. 259 (1993) (no absolute immunity for conduct or administrative functions that do not relate to an advocate's preparation for judicial proceedings in a Prosecution).

The tow hearing at which Chau appeared and participated was not a criminal prosecution. It was an administrative proceeding concerning the lawfulness of the vehicle seizure. Chau's conduct at that hearing, including blocking evidence, permitting unreliable testimony, and misrepresenting the legality of the arrest, falls squarely outside the scope of absolute prosecutorial immunity. At minimum, whether Chau's specific conduct falls within the scope of any prosecutorial immunity requires factual development and cannot be resolved on the pleadings alone.

G. Qualified Immunity Cannot Be Resolved on These Pleadings

Defendants assert that Deputy Gonzales and Records Clerk Riley are entitled to qualified immunity. However, the qualified immunity analysis is premature at this stage for several reasons.

1. Plaintiff Has Alleged Violations of Clearly Established Rights

The following rights were clearly established at the time of the events alleged:

- The right to be free from custodial arrest for a non-jailable administrative offense when the Legislature has provided a specific remedial process
- The right to be free from detention for eighteen hours without a warrant, formal charge, or judicial review
- The right to access exculpatory evidence under *Brady v. Maryland*, 373 U.S. 83 (1963)

- The right to access public records as an indigent litigant when the court has recognized that indigency

2. Defendants' Qualified Immunity Argument Rests on Disputed Facts

Qualified immunity turns on whether the officer's conduct was "objectively reasonable in light of clearly established law." Whether Deputy Gonzales's decision to conduct a custodial arrest, rather than issue a citation under the remedial framework, was objectively reasonable is a factual question that cannot be resolved without discovery into the deputy's training, the department's policies, and the specific circumstances of the arrest.

3. The Fifth Circuit Disfavors Resolving Qualified Immunity at the 12(b)(6) Stage When Facts Are Disputed

The Fifth Circuit has recognized that while qualified immunity may be raised at the motion-to-dismiss stage, "it is generally premature to address qualified immunity on a motion to dismiss" when the factual record is undeveloped. Where, as here, the factual record is entirely undeveloped and the parties dispute the operative facts, the qualified immunity determination should be deferred until summary judgment. Dismissal at this stage would deny Plaintiff the opportunity to develop, through discovery, the factual record necessary to fully address qualified immunity.

H. Plaintiff's Malicious Prosecution Claim Is Adequately Pled

Defendants argue that Plaintiff's malicious prosecution claim fails because "probable cause" existed. This argument fails for the reasons stated throughout this Response, Defendants have not established that probable cause existed for the custodial arrest and criminal processing of an administrative compliance matter.

The elements of malicious prosecution require: (1) a criminal prosecution was commenced; (2) the prosecution was initiated or procured by the defending party; (3) the prosecution terminated in the complaining party's favor; (4) the complaining party was innocent; (5) the defending party lacked probable cause; (6) the defending party acted with malice; and (7) the complaining party suffered damages.

Plaintiff has alleged element:

- Criminal proceedings were initiated** — Plaintiff was arrested, detained, processed, and had a "time served" disposition entered against him, creating a criminal record. Compl. ¶¶ 20-21.
- The proceedings were procured by Defendants** — Deputy Gonzales made the custodial arrest; Judge Sanders entered the baseless disposition; County Attorney Chau supported and ratified the proceedings at the tow hearing. Compl. ¶¶ 20-21, 23, 56.

- The disposition was imposed without legal authority, without a plea, without adjudication, and in contravention of § 502.407(b)'s remedial framework, which would render it void. Discovery of the evidence will provide the proper disposition.
- Plaintiff could be innocent, The offense was an administrative compliance matter subject to dismissal under § 502.407(b) upon remedial correction within 20 working days. By imposing "time served" before Plaintiff had any opportunity to invoke this statutory right, Judge Sanders deprived Plaintiff of the presumption of administrative compliance that the Legislature built into the statute. Plaintiff was punished for an offense that the Legislature specifically provided he could resolve without any criminal consequence.
- Probable cause was lacking, For the reasons discussed throughout this Response, probable cause for a traffic stop does not equate to probable cause for custodial arrest, criminal processing, and the imposition of punishment for an offense the Legislature designated for remedial treatment. The decision to bypass the remedial framework and instead impose criminal punishment was made without legal authority.
- Malice existed, Malice is evidenced by the coordinated concealment of body camera and dash camera evidence, the denial of due process at magistration,

the refusal to correct known errors, the obstruction of public records access, and the conduct of a procedurally defective tow hearing designed to ratify the original misconduct. Compl. ¶¶ 25-29, 56-59.

- Plaintiff suffered damages As detailed in the Complaint. Compl. 74.

I. Plaintiff's Conspiracy Claims Under §§ 1985(3) and 1986 Are Sufficiently Alleged

Defendants argue that Plaintiff's conspiracy claims fail because (1) there was no underlying constitutional deprivation, and (2) Plaintiff presents no "evidence" of a meeting of the minds.

1. Underlying Constitutional Deprivation Is Adequately Alleged

For all the reasons stated herein, Plaintiff has plausibly alleged deprivation of his constitutional rights. The argument that no deprivation occurred is a contested factual and legal conclusion that cannot be accepted as established at the 12(b)(6) stage.

2. A Meeting of the Minds May Be Inferred from Circumstantial Allegations

Plaintiff is not required to present direct evidence of an explicit agreement at the pleading stage. Conspiracy may be, and almost always is, proven through

circumstantial evidence. "Plaintiffs who allege a conspiracy need not, however, provide direct evidence of a conspiracy; rather they need only demonstrate that the 'totality of facts and circumstances' gives rise to a plausible inference of conspiracy.

Plaintiff has alleged specific, coordinated actions by multiple Defendants that, taken together, support a plausible inference of concerted action:

- Deputy Gonzales conducted a custodial arrest for an offense the Legislature designated for remedial, non-custodial treatment
- Judge Sanders entered a baseless "time served" disposition without due process, eliminating Plaintiff's statutory right to remedial dismissal
- Records Clerk Riley obstructed access to body camera and dash camera footage that would have revealed the circumstances of the arrest and the location of the car, which was the original reason for the tow hearing, the legality of the arrest would have been properly addressed even though the plaintiff at the time wasn't aware that arrest was questionable due to this very concealed evidence.
- County Attorney Chau blocked discovery at the tow hearing, permitted unreliable testimony, and misrepresented the legality of the arrest, creating the illusion that the process was legal.
- Judge Finlay denied production of evidence, sustained objections that shielded misconduct, and ruled in favor of the County despite the lack of evidentiary support.

The sequential, coordinated nature of these actions, each of which served to conceal and compound the harm caused by the prior action, is precisely the type of circumstantial evidence from which a conspiracy may be inferred. That each official's misconduct perfectly complemented and built upon the misconduct of the others is not mere coincidence; it is evidence of coordinated action to deprive Plaintiff of his constitutional rights and to prevent him from obtaining redress and illegally taking of his person and property.

3. Defendants' Demand for "Evidence" Is Inappropriate at This Stage

As discussed in Section III.D above, Defendants' repeated demand for "evidence" reflects a misunderstanding of the 12(b)(6) standard. Plaintiff's factual allegations, accepted as true, are sufficient to state a plausible conspiracy claim.

J. Plaintiff's Monell Claim Survives Dismissal

Defendants argue that Plaintiff cannot establish *Monell* liability because his claims concern "isolated conduct of a single arrest in a single case." Defs.' Mot. at 12. This argument understates both the law and Plaintiff's allegations.

1. A Single Incident Can Support Monell Liability

While repeated instances of misconduct can demonstrate an unconstitutional custom, a single incident can also establish *Monell* liability where the constitutional violation was caused by an official policy, a decision by a final policymaker, or deliberate indifference in training and supervision.

Municipal liability requires "a policymaker; an official policy; and a violation of constitutional rights whose 'moving force' is the policy or custom." Municipalities may also be liable "where the constitutional deprivation is pursuant to a governmental custom, even if such custom has not received formal approval.

Here, Plaintiff has alleged:

Decisions by final policymakers:

- Judge Sanders a final policymaker for magistration proceedings entered a baseless disposition in contravention of § 502.407(b).
- County Attorney Chau, a final policymaker for prosecutorial and legal decisions, supported and ratified the unlawful proceedings at the tow hearing.

These are not low-level employees exercising discretion; they are officials whose decisions constitute County policy.

Deliberate indifference to training:

- Plaintiff alleges that the County failed to train deputies on the distinction between offenses authorizing custodial arrest and administrative offenses subject to remedial treatment under § 502.407, failed to train court staff on due process requirements at magistration, and failed to train records personnel on public records obligations and indigency fee waivers. Compl. 69.

Systemic policies and customs:

- Plaintiff alleges customs of permitting custodial arrests for non-jailable administrative offenses, tolerating the withholding of exculpatory evidence, and allowing administrative obstructions to public records access. Compl. 69.

2. Discovery Is Necessary to Develop the Monell Claim

Whether Matagorda County maintained unconstitutional policies, customs, or practices is inherently a discovery-intensive question. Plaintiff cannot, at the pleading stage, be expected to have access to the County's internal training materials, arrest statistics, complaint records, or policy manuals. The appropriate course is to permit discovery so that the scope of any unconstitutional pattern or practice can be fully developed. Dismissing a *Monell* claim at the pleading stage where, as here, the plaintiff has plausibly alleged systemic failures would deny Plaintiff the opportunity to uncover evidence that is exclusively within Defendants' control.

K. Defendants' Silence on Damages Constitutes Implicit Concession

Plaintiff's Complaint cites **Trezevant v. City of Tampa**, 741 F.2d 336 (11th Cir. 1984), in which a jury awarded \$25,000 in compensatory damages for an unlawful detention lasting just twenty-three minutes. Plaintiff applied the per-hour rate from **Trezevant**, adjusted for inflation to May 2023, to his eighteen-hour detention to arrive at a damages figure **exceeding** \$3.2 million.

Defendants acknowledge Plaintiff's damages request of \$3.2 million in their Motion but raise no objection to the methodology, the case citation, or the damages calculation. Defs.' Mot. at 2. Their silence on this issue is notable. By failing to challenge the plausibility or reasonableness of Plaintiff's damages theory, Defendants have implicitly conceded that:

- The **Trezevant** precedent is applicable and relevant to this case
- The inflation-adjusted methodology is facially plausible
- The damages calculation, if the underlying constitutional violations are proven, is within the range of plausible recovery

At minimum, Defendants' failure to contest the damages theory means that the damages issue cannot serve as a basis for dismissal. Whether the precise amount is warranted is a question for the trier of fact, not for resolution on a motion to dismiss.

L. The County Attorney's Office and Sheriff's Department Are Properly Named

Defendants argue that the Matagorda County Attorney's Office and Sheriff's Department lack the capacity to be sued as separate entities, citing **Darby v. Pasadena Police Dep't**, 939 F.2d 311 (5th Cir. 1991). Plaintiff acknowledges the legal principle that sub-entities of a county may lack independent jural authority under Texas law. However:

- Matagorda County itself is a named Defendant, and any claims against the sub-entities are effectively claims against the County.
- To the extent the Court determines that these sub-entities lack independent capacity, the appropriate remedy is not dismissal with prejudice but rather consolidation of those claims under Matagorda County as the proper party defendant.
- Plaintiff, as a pro se litigant, should be afforded the opportunity to amend his Complaint to correct any technical naming deficiencies rather than suffer the harsh remedy of dismissal. **See Jacquez v. Procunier**, 801 F.2d 789, 792 (5th Cir. 1986) (courts should provide pro se plaintiffs the opportunity to amend deficient pleadings).

IV. CONCLUSION AND PRAYER FOR RELIEF

Defendants' Motion to Dismiss rests on a misstatement of the controlling Texas statute, an improper assumption that probable cause for a traffic stop automatically authorized

custodial arrest and eighteen hours of detention, a conflation of probable cause with the totality of Plaintiff's constitutional claims, an inappropriate demand for evidence at the pleading stage, and an overbroad application of immunity doctrines.

Plaintiff's Complaint alleges, with specificity, a coordinated pattern of constitutional violations by multiple County officials, from the initial unlawful custodial arrest, through the sham magistration that imposed punishment in contravention of the remedial framework, the suppression of exculpatory evidence, the obstruction of public records access, the procedurally defective tow hearing, and the ongoing maintenance of a false criminal record. These allegations, accepted as true and construed liberally as required for a pro se plaintiff, state plausible claims for relief under 42 U.S.C. §§ 1983, 1985(3), and 1986.

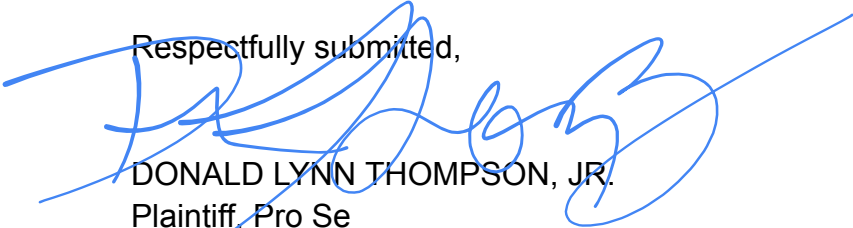
WHEREFORE, Plaintiff respectfully requests that this Court:

1. DENY Defendants' Motion to Dismiss in its entirety;
2. ORDER that this case proceed to discovery so that Plaintiff may obtain the evidence that Defendants have systematically obstructed him from accessing, including body camera footage, dash camera footage, official records, training materials, and policy documents;

3. GRANT Plaintiff leave to amend his Complaint, if necessary, to correct any technical deficiencies identified by the Court;

4. AWARD Plaintiff such other and further relief as the Court deems just and proper.

Respectfully submitted,



DONALD LYNN THOMPSON, JR.

Plaintiff, Pro Se

PO Box 521

Markham, Texas 77456

ginnyleethompson430@gmail.com

donniethompson430@gmail.com

Filed February 15, 2026

CERTIFICATE OF SERVICE

I hereby certify that on February 15, 2026, a true and correct copy of the foregoing *Plaintiff's Response in Opposition to Defendants' Motion to Dismiss* was served upon counsel for Defendants via Certified Mail, Return Receipt Requested, and via electronic mail at the addresses listed below, in accordance with the Federal Rules of Civil Procedure:

To the following:

Ben Stephens
Kate David

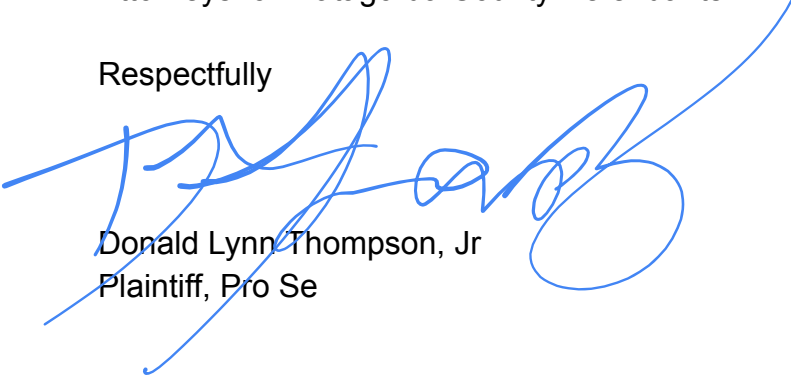
HUSCH BLACKWELL LLP
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Simultaneously a true and correct copy has been sent electronically by reply to all using the email from the defense counsel when they sent their motion to dismiss

Email: Ben.Stephens@huschblackwell.com
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Attorneys for Matagorda County Defendants

Respectfully



Donald Lynn Thompson, Jr
Plaintiff, Pro Se

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF TEXAS
GALVESTON DIVISION

Donald Lynn Thompson Jr.,
Plaintiff,

v.

Matagorda County, et al.,
Defendants.

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CIVIL ACTION NO. 3:25-cv-00253

ORDER DENYING MOTION TO DISMISS

On this day, the Court considered the Motion to Dismiss filed by Defendants, Matagorda County, et al. The Court, having reviewed the Motion, Plaintiff's Answer, and the applicable law, finds that dismissal is not warranted at this stage.

Specifically, under Federal Rule of Civil Procedure 12(b)(6), a complaint must be dismissed only if it fails to state a claim upon which relief can be granted. On this day, the Court considered the Motion to Dismiss filed by Defendants, Matagorda County, et al. The Court, having reviewed the Motion, the Plaintiff's Answer, and the applicable law, finds that the Motion should be DENIED.

IT IS THEREFORE ORDERED that the Motion to Dismiss filed by Defendants is hereby

DENIED.

SIGNED this ____ day of February, 2026.

JUDGE NAME
UNITED STATES DISTRICT JUDGE